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Case Number: 25TRCV01104 Hearing Date: September 24, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – September 24, 2026

Calendar No.

PROCEEDINGS

Luis

F. Vargas v. Jaguar Land Rover North America, LLC, et al.

25TRCV01104

1.

Luis F. Vargas' Motion

to Compel Further Responses to Form Interrogatories

2.

Luis F. Vargas'

Motion to Compel Further Responses to Special Interrogatories

3.

Luis F. Vargas' Motion

to Compel Further Responses to Request for Production of Documents

4.

Luis F. Vargas'

Motion to Compel Further Responses to Request for Admissions

TENTATIVE RULING

Luis F. Vargas' Motions to Compel Further Responses to Form and Special Interrogatories, Request for Production of Documents, and Request for Admissions are granted, in part, and denied, in part.

Background

Plaintiff filed the Complaint on January 29, 2025. This is a "Lemon Law" case brought by Plaintiff concerning a 2023 Land Rover Range Rover Velar. Plaintiff alleges that the vehicle suffers from widespread defects including electrical and engine defects. Defendant was unable to repair their vehicle within a reasonable number of attempts. Plaintiff further alleges that Defendant knew that the vehicle suffered from the prevalent defects but nevertheless refused to repurchase the vehicle—a willful violation of the Song-Beverly Consumer Warranty Act ("Song-Beverly Act").

Motions to Compel Further Responses to Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Request for Admissions

Where

responses to interrogatories have been served but the requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. CCP § 2030.300(a). Notice of the motion must be given within 45 days after service of verified responses in question, or any verified supplemental responses. CCP § 2030.300(c). The motion must be accompanied by a meet and confer declaration in compliance with CCP § 2016.040. CCP § 2030.300(b).

Where responses to requests for admissions have been served but requesting party believes that they are

deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. CCP § 2033.290(a). The motion must be made within 45 days after service of verified responses in question, or any verified supplemental responses. CCP § 2033.290(c). The motion must be accompanied by a meet and confer declaration in compliance with CCP § 2016.040. CCP § 2033.290(b).

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiff set forth meet and confer declarations in substantial compliance with CCP 2030.300(b), § 2031.310(b)(2), and 2033.290(b). (Declarations, Astrid Souto).

Motion to Compel

Plaintiff seeks further responses to Form Interrogatories 15.1 and 17.1.

Plaintiff's motion to compel further responses to Form Interrogatories 15.1 and 17.1 is granted. First, and most fundamentally, Plaintiff contends that no verifications were served in connection with the responses. Unverified responses are tantamount to no responses at all. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.

In any event, even had verifications been served, the responses are evasive, incomplete, non-responsive, and/or Defendant has failed to justify its objections. Other than the response to sub-part (a) of interrogatory 15.1 in connection with the general denial, the factual responses that were required in sub-part (a) are conclusory. The responses to the other sub-parts are incomplete and not fully responsive to the interrogatories.

Plaintiff seeks further responses to Special Interrogatories 3 to 5, 7, 8, 10, and 13.

Special Interrogator ("SI") 3: "Please describe in detail YOUR rules, policies, and procedures (if any) for complying with the Song Beverly Consumer Warranty Act as of the year 2023."

SI 4: "Please describe in detail the rules, policies, and procedures (if any) that YOUR authorized repair facilities must follow in order to insure YOUR compliance with the Song Beverly Consumer Warranty Act as of the year 2023."

SI 10: "If YOU contend YOU are under no obligation to repurchase or replace the SUBJECT VEHICLE in accordance with the Song Beverly Consumer Warranty Act, please state all facts upon which YOU rely upon for this contention."

SI 13: "Please state how many cumulative days YOUR records show that the SUBJECT VEHICLE was out of service by reason of any defect or condition complained of by Plaintiff."

Plaintiff's motion is granted as to special interrogatories 3, 4, 10, and 13. Defendant's responses consist of simply a series of objections. However, Defendant failed to provide any evidence in its opposition that could justify and provide merit for the objections. The substantive

response to interrogatory 13 essentially tells Plaintiff to look at a document. The response is non-responsive to the interrogatory. The substantive response to interrogatory 10 refers Plaintiff to Defendant's response to form interrogatory 15.1. However, as already noted above, the response to form interrogatory 15.1 is insufficient. The substantive response to interrogatory 13 also simply tells Plaintiff to look at repair orders that are being produced. Again, this response is non-responsive to the interrogatory.

SI 5: "Please IDENTIFY each of YOUR agents or employees responsible for implementing YOUR rules, policies, and procedures for complying with the Song Beverly Consumer Warranty Act as of the year 2023."

The motion is denied as to special interrogatory 5. The interrogatory is overly broad and vague. Perhaps a more specific tailored interrogatory that focuses on the vehicle in question would have been less broad and would have mandated a response. As currently worded, the interrogatory potentially encompasses numerous individuals throughout the numerous departments of Defendant's corporate infrastructure.

SI 7: "Yes or no, prior to the filing of this lawsuit, did YOU have a policy in place to be informed of repeat repair visits from anyone other than the Plaintiff?"

SI 8: "If your answer to No. 7 above was yes, describe YOUR policy in detail."

The motion is denied as to special interrogatories 7 and 8. The interrogatories are vague and ambiguous. First, it is unclear how overarching and sweeping this interrogatory is meant to be because as currently worded the interrogatory would apply to every single individual living on the planet other than Plaintiff. For example, without a clear definition of "repeat repair visit," it is unclear if Plaintiff is seeking information as to all vehicles of any kind owned by anyone which was taken into for repair. The term "being informed" is also somewhat vague and unclear.

Plaintiff seeks further responses to Request for Production of Documents ("RFP" or "Request[s]") Nos. 1, 11, 12, 14, and 15.

RFP 1: "All DOCUMENTS bearing vehicle identification number ("VIN") 1C4RJYB65N8748403."

The motion is denied. The request is overly broad as the request appears to seek potentially every document in existence with respect to this vehicle without any regard for how it is intertwined with the facts of this case.

RFP 11: "All DOCUMENTS evidencing or setting out YOUR rules, policies, or procedures (if any) for complying with the Song Beverly Consumer Warranty Act as of the year 2023."

RFP 12: "All DOCUMENTS evidencing or setting out the rules, policies, and procedures (if any) applicable to YOUR authorized repair facilities to further YOUR compliance with the Song Beverly Consumer Warranty Act as of the year 2023."

RFP 14: "All written agreements between YOU and any of YOUR authorized repair facilities to which the SUBJECT VEHICLE has been presented concerning, reflecting, or memorializing rules, policies, or procedures regarding the inspection, service, diagnosis, analysis, evaluation, or repair of vehicles as of the year 2023."

RFP 15: "All written agreements between YOU and any of YOUR authorized repair facilities to which the SUBJECT VEHICLE has been presented concerning, reflecting, or memorializing any rules, policies, or procedures to further YOUR compliance with the Song Beverly Consumer Warranty Act as of the year 2023."

Plaintiff's motion is granted as to requests 11, 12, 14, and 15. The requests are designed to lead to the discovery of admissible evidence in this action. To the extent that Defendant may be withholding documents based on a privilege, Defendant is required to produce a privilege log.

Plaintiff seeks further responses to Request for Admissions ("RFA") 3, 9, 13, and 15.

As to requests 3, 9, 13, and 14, the motion is granted.

RFA 3: "Admit YOUR authorized repair facility took

more than a combined total of 30 days to attempt to repair the SUBJECT VEHICLE.”

RFA 9: “Admit YOU have failed to conform the SUBJECT VEHICLE to warranty within two (2) repair attempts.”

RFA 13: “Admit that YOU reviewed claims for reimbursement submitted to YOU by YOUR authorized repair facility for repairs performed on the SUBJECT VEHICLE.”

As to requests 3, 9, and 13, Defendant’s responses consist of simply a series of objections. Then, Defendant responded essentially stating that discovery is on-going. The responses fail to comply with CCP § 2033.210 et seq. In addition, Defendant failed to provide any evidence in its opposition that could justify and provide merit for the objections.

RFA 14: “Admit that YOU request charge-backs to YOUR authorized repair facilities for reimbursement claims if YOU determine that a repair that was claimed under YOUR express warranty should not have been covered under YOUR express warranty.”

As to request 14, Defendant’s response consists of simply a series of objections. Then, Defendant responded with a vague response stating: “Subject to and without waiving the foregoing objections, JLRNA responds: To the extent JLRNA understands this request, JLRNA admits subject to certain conditions and circumstances.” However, this response fails to comply with CCP 2033.220(b) which states: “Each answer shall: (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. (2) Deny so much of the matter involved in the request as is untrue. (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.”

Defendant is ordered to serve further verified responses to form interrogatories 15.1 and 17.1, special interrogatories 3, 4, 10, and 13, requests for production of documents 11, 12, 14, and 15, and requests for admissions 3, 9, 13, and 14 within 20 days of this date.

Plaintiff is ordered to give notice of this ruling.